The ESC, CCC and OIR Ethical Standards complaints — where they stand and what is left

Prepared for Cory Lea Shepherd, 10 November 2026. Draft for discussion with your lawyer. Privileged. Not for service or filing.

1. What this covers, and what I read

You asked for an assessment of "the ESU and the CCC matter and complaint" in your Gmail. Three separate complaint files sit in the mailbox, and they are easy to run together, so this document keeps them apart:

Short name	Body	Reference	What it is about
CCC first file	Crime and Corruption Commission	CO-25-2722	Your 8 July 2025 complaint about the February–March 2025 police conduct (arrest at Unit 104, seizure of the phone and keys, seizure of Romeo). Referred to QPS Ethical Standards Command on 18 August 2025.
CCC second file	Crime and Corruption Commission	CO-26-1318	New allegations you raised on 17 and 24 March 2026 (contradicting officer statements, not following the Information Commissioner's directions, the May 2025 roadside stop, reprisal in March 2026, and concerns about ESC itself). Referred to the QPS Deputy Commissioner on 28 April 2026.
ESC	QPS Ethical Standards Command (Office of the State Coordinator)	COM-26-01249	The QPS file opened on 18 June 2026 to deal with the CCC's referral of CO-26-1318. Outcome Advice issued 10 September 2026.
OIR Ethical Standards ("ESU" in your emails)	Office of Industrial Relations, Ethical Standards	ES ref 4822 (and OIR Complaints "Issue 4712")	Your 12 February 2026 complaint that the Regulator's appeals officer obtained your GP records without a Form 29 being served on you and sent them to your former solicitors; alleged reprisal under the Public Interest Disclosure Act. Closed 23 February 2026.

A fourth "Ethical Standards" body appears in the background: the Metro South Health Ethical Standards Unit, which on 24 December 2024 found that your 13 May 2024 complaint was a public interest disclosure (PID 24-ESU-1130). That matter is not assessed here; it belongs to the WorkCover and employment tracks.

What I read, in full, from the Gmail case-file copies: the CCC letters of 31 March, 14 April, 28 April and 28 July 2026 and your emails of 8 and 15 April 2026 (CO-26-1318); the CCC complaint-service-review decline letter of 30 March 2026 (CO-25-2722, from Drive); the ESC receipt and particulars request of 18 June 2026; the ESC Outcome Advice of 10 September 2026; your letters to ESC of 29 October and 5 November 2026; the Deputy Commissioner's office acknowledgments of 24 July 2026 and your emails of 23 July and 9 September 2026; the OIR Ethical Standards emails of 12 and 23 February 2026, the OIR Complaints Manager's emails of 13 and 23 February 2026, and your complaint of 12 February 2026; the Information Commissioner correspondence on external review 318762 (August–November 2025). I also checked the Rules, the Police Service Administration Act, the Crime and Corruption Act and the Right to Information Act against the current authorised text.

What I could not read: the attachments to your emails (Gmail does not let me open them), including the Executive Summary of your 14 July 2026 report, the earlier ESC letter "COM-24-00832", and the two officer statements; any reply you sent to ESC's particulars request of 18 June 2026; any reply from OIR after 23 February 2026; and anything received after 5 November 2026. Where that matters, I say so.

2. The chronology that matters

Date	Event	Source
8 Jul 2025	Complaint to the CCC about the Feb–Mar 2025 conduct (CO-25-2722).	CCC letter 30 Mar 2026
18 Aug 2025	CCC refers CO-25-2722 to QPS ESC under the "devolution principle" and closes its file. The letter includes the Charter of Service link (14-day review window).	CCC letter 30 Mar 2026
11 Sep 2025	Information Commissioner closes external review 318762 on QPS's agreement to process a new application for the complete body-worn footage of two officers (24 Feb and 22 Mar 2025). QPS later numbers it RTI/56733, decision due 20 Oct 2025.	OIC emails 11–17 Sep 2025
17 Nov 2025	You tell QPS and the OIC the footage produced does not include the agreed interactions.	Your email 17 Nov 2025
19 Nov 2025	The OIC asks whether QPS issued a formal decision, whether you seek external review, and the reference and date. No answer is in the mailbox.	OIC email 19 Nov 2025
17 & 24 Mar 2026	You ask the CCC to review its August 2025 decision and raise new allegations.	CCC letter 30 Mar 2026
30 Mar 2026	CCC declines the review as about 211 days out of time (14-day rule; one review only) but opens CO-26-1318 for the new allegations and asks that it be prioritised.	CCC letter 30 Mar 2026
31 Mar 2026	CCC assesses CO-26-1318 as appropriate to refer to the QPS Deputy Commissioner, "who is independent from QPS ESC", but only with your consent, and warns of strict statutory time frames; consent needed by 28 Apr 2026.	CCC email 31 Mar 2026
8 Apr 2026	You consent and ask the CCC to monitor; you list the three body-worn-camera serials, the specimen, the March 2026 reprisal and your concerns about ESC.	Your email 8 Apr 2026
14 Apr 2026	CCC: consent noted; "the CCC has determined not to enliven our review/monitoring powers for this matter".	CCC email 14 Apr 2026
28 Apr 2026	CCC confirms referral to the Deputy Commissioner including your 8 April email, says QPS must tell you the action taken, the reason and the outcome, and closes its file.	CCC email 28 Apr 2026
18 Jun 2026	ESC registers COM-26-01249 (about seven weeks after the referral) and the same day asks for particulars — court matter, date of offence, charge, officer names — by close of business the next day, 19 June.	ESC emails 18 Jun 2026
14 Jul 2026	You send the Case Study Complaint and Public-Safety Report with executive summary to the Deputy Commissioner's office; acknowledged 15 July.	Your email 9 Sep 2026
23–24 Jul 2026	Navigation guide sent; second acknowledgment: "Once the information is appropriately assessed a further response can be provided".	DC office email 24 Jul 2026
28 Jul 2026	CCC asks you to stop writing to it and to stop copying it on correspondence to others.	CCC email 28 Jul 2026
9 Sep 2026	You chase the Deputy Commissioner's office: no substantive response received.	Your email 9 Sep 2026
10 Sep 2026	ESC Outcome Advice: assessed by ESC "including review by the State Coordinator"; officers' actions consistent with policy and law; "no evidence of disciplinable conduct"; court matters are for the court; human rights and the Charter of Victims' Rights considered; matter finalised. Invites you to ask how it was assessed.	ESC email 10 Sep 2026
29 Oct 2026	Your detailed response: who decided; the complaint described does not match the one the CCC referred; the OIC agreement; the referred allegations not addressed; the human-rights conclusion unreasoned; asks for remittal to the Deputy Commissioner and a reply by 12 Nov 2026; asks for preservation of footage and records.	Your email 29 Oct 2026
5 Nov 2026	Follow-up: no acknowledgment received; asks for confirmation of receipt, the decision-maker, a responsible officer and a date, by 12 Nov 2026.	Your email 5 Nov 2026

3. The CCC files — assessment

Where they stand. Both CCC files are closed. CO-25-2722 was closed in August 2025 by referral to ESC; your request for a review of that decision was refused on 30 March 2026 because it arrived about seven months after the 14-day window in the CCC's Charter of Service, and the CCC accepts only one review request per complaint. CO-26-1318 was closed on 28 April 2026 by referral to the Deputy Commissioner. On 14 April the CCC decided not to use its monitoring powers, and on 28 July it asked you to stop writing to it about this matter.

What the CCC did was within its powers. The Crime and Corruption Act tells the CCC to let agencies deal with their own corruption and misconduct complaints unless the public interest calls for CCC involvement, and to concentrate on serious and systemic cases (ss 34 and 35). When the CCC refers a police complaint, the Commissioner of Police must deal with it "in the way the commissioner of police considers most appropriate, subject to the commission's monitoring role" (s 42(2) and (5)). Whether to monitor is the CCC's choice. There is no right of appeal against a referral decision, and the CCC's own review process has been used and exhausted on the first file.

What is still useful from the CCC's letters. Two things the CCC put in writing are now your strongest material:

1. On 31 March 2026 the CCC said the new allegations were appropriate to refer to the Deputy Commissioner "who is independent from QPS ESC" — because your allegations included concerns about ESC's handling of earlier complaints. On 28 April it confirmed the referral went to the Deputy Commissioner. The Outcome Advice of 10 September says the matter was assessed by ESC. That mismatch is a fair and narrow question, and you have asked it correctly.
2. On 28 April the CCC said QPS "must tell you the action taken to deal with your complaint, the reason they consider the action to be appropriate, the outcome". That tracks s 42(7) of the Act, under which the Commissioner of Police must respond stating either the reason for taking no action, or the action taken, why it is appropriate, and any known results.

The one further step with the CCC that is defensible. The CCC told you on 28 April that if you were unhappy with QPS's handling you should "resolve this by engaging with the QPS in the first instance". You have done that (29 October and 5 November). If QPS does not answer by 12 November, one short letter to the CCC is justified — not to re-argue the merits, which it has twice declined to take up, but to report one new fact about the handling of its own referral: that a matter it referred to the Deputy Commissioner for independence from ESC was finalised by ESC, and that the Deputy Commissioner's office has not said whether it made any decision. Ask the CCC to consider its monitoring role on that point only. Keep it to one page, no attachments beyond the Outcome Advice and your 29 October letter, and no copies to anyone else. The CCC may still decline; the risk is that it treats the letter as a breach of its 28 July request, which is why it must be short, single-issue and sent once.

What is not available. The Parliamentary Crime and Corruption Committee hears complaints about the CCC's conduct, but on the material I could find it does not review how the CCC handled an individual complaint or its referral decisions (I could not open the Committee's guide; treat this as needing a check). The Queensland Ombudsman cannot look at police conduct that has been or could be dealt with under the Crime and Corruption Act (Ombudsman Act s 16(2)(c)).

4. The ESC file COM-26-01249 — assessment

Where it stands. ESC has finalised the matter with no further inquiry. Your two letters are unanswered. Your stated date for a reply is Thursday 12 November 2026 — two days from now.

What your 29 October letter gets right. Read against the CCC's letters, five points hold up and each is anchored in a document:

1. *The decision-maker.* The CCC's referral was premised on independence from ESC. The Outcome Advice names ESC and the State Coordinator and does not mention the Deputy Commissioner. Nothing in the mailbox shows the Deputy Commissioner made a decision or passed the matter to ESC. Asking "who decided, and on whose authority" is the right question, and it is a modest one.

2 *The complaint described is not the complaint referred.* The CCC recorded contradicting statements, failure to follow the Information Commissioner's directions, the May 2025 roadside stop, reprisal in March 2026, and concerns about ESC. The Outcome Advice re-describes the complaint as interference with your court matters and answers that incongruities should be raised in court. The reprisal allegation appears only as "potential reprisal action", with nothing decided.

3 *The Information Commissioner agreement.* This is a records-access process, not court disclosure. QPS agreed in principle (12 August 2025), the OIC closed its review on that basis (11 September 2025), QPS numbered the new application RTI/56733 with a decision due 20 October 2025, and you reported on 17 November 2025 that the agreed segments were not produced. The Outcome Advice does not engage with it.

4 *The reasons are generic.* "Information gathered … may include" footage and records does not say what was looked at. The human-rights and Charter conclusions name no right, fact or reasoning.

5 *Preservation.* Asking that the three footage serials, their metadata and logs, the RTI/56733 file and the complaint-assessment records be preserved is sensible and costs nothing.

Where ESC's position is stronger than it feels. You should know these before deciding how far to push:

1 *The response is, in form, a response.* Section 42(7) requires QPS to state the reason for not taking action, or the action taken and why it was appropriate. The Outcome Advice does that at a general level (assessment by ESC with State Coordinator review; no misconduct found; no further inquiry). The law requires a response with reasons; it does not prescribe how detailed they must be. Your complaint is really about the quality and accuracy of the reasons, which is a fair complaint but not a breach you can enforce.

2 *"Raise it in court" is a conventional answer.* Where a complainant is a defendant in a live prosecution and the complaint concerns inconsistencies between officer statements and footage, complaint bodies routinely defer to the court. The court can compel disclosure and test the witnesses; ESC cannot decide the charge. This does not excuse the failure to deal with the OIC and reprisal allegations, which are not before the court, but it is not an irrational stance on the arrest-and-statements allegations.

3 *No right of review for a complainant.* Part 7 of the Police Service Administration Act gives review rights to the officer, and the QCAT review provisions in the Crime and Corruption Act are for the CCC and the officer. A complainant has no statutory review of a "no action" decision. A judicial review application is possible in theory, but the ordinary 28-day period from the 10 September decision has passed (an extension is discretionary), the court would not decide the merits, and the cost is out of proportion to what could be gained. I do not recommend it.

4 *The time limit for disciplining officers has largely run.* Under s 7.12 of the Police Service Administration Act, a disciplinary proceeding must start within the latest of: one year from when the ground arose; six months from when the complaint (or a complaint substantially about the same ground) was received by the Commissioner or the CCC; or, if a criminal or protection-order proceeding is on foot against the officer, six months after it ends. Your court case does not count — the "relevant proceeding" must be one against the officer. Applied to your matters:

| Conduct | One year from the conduct | Six months from receipt of the complaint | |---|---|---| | 24 Feb 2025 arrest; seizure of phone and keys | 24 Feb 2026 — passed | CCC received 8 Jul 2025 → 8 Jan 2026 — passed; new allegations received 17/24 Mar 2026 → 17/24 Sep 2026 — passed; referral received by QPS 28 Apr 2026 → 28 Oct 2026 — passed | | 22 Mar 2025 seizure of Romeo | 22 Mar 2026 — passed | as above | | 24 May 2025 roadside stop | 24 May 2026 — passed | as above | | Non-processing of RTI/56733 (due 20 Oct 2025) | about 20 Oct 2026 — passed, unless treated as continuing | 24 Sep 2026 — passed | | March 2026 reprisal allegation | March 2027 — open | 24 Sep 2026 — passed, but the one-year period still runs |

The only generous reading is that ESC's own receipt on 18 June 2026 restarts the six months (to 18 December 2026). On the ordinary reading the window for disciplining anyone over the 2025 events closed in September–October 2026, before you wrote on 29 October. The practical consequence: even a perfect re-assessment is unlikely to end in disciplinary action for the 2025 conduct. What remains achievable is different — a correct record of what was and was not assessed, an answer on the Information Commissioner

agreement, release of the footage, return of property, and consideration of the March 2026 allegation, which is still within time.

1 *The particulars request of 18 June 2026.* ESC asked for the court matter, charge, dates and officer names by close of business the next day. If no reply went in, ESC will say it assessed on the material it had. Your 14 July report went to the Deputy Commissioner's office, not to the ESC mailbox, and the Outcome Advice does not mention it. If you did reply on 18 or 19 June, that reply should be on the file and you should say so in any further letter; if you did not, say that the report of 14 July was with QPS from that date.

Realistic outcomes. The most likely result of the 29 October and 5 November letters is a short reply naming ESC as the decision-maker and maintaining the finding, possibly with a sentence or two more on how the assessment was done. A remittal to the Deputy Commissioner is possible but not likely. A reopening with investigation is unlikely, and discipline for the 2025 conduct is effectively out of reach for the reasons above. Judge any further effort against that.

5. OIR Ethical Standards ES 4822 (your "ESU") — assessment

Where it stands. Closed on 23 February 2026. The OIR Ethical Standards manager found that the appeals officer's conduct did not amount to reprisal and that the records were obtained and used in accordance with the legislation and OIR policy. The same day the OIR Complaints Manager offered the ordinary OIR complaints process if you wanted the matter internally assessed, with a reply requested by 25 February 2026. There is no record in the mailbox of a reply, so I have treated that offer as lapsed; if you did take it up, the position below still holds.

The complaint's central premise does not survive the Rules. Your complaint said the Regulator obtained your GP records "without serving a Form 29 Notice of Non-Party Production on me", in breach of the Tribunal Rules. The Regulator admits no Form 29 was served on you and says it was not required to serve you (Form 24 response, paragraph 25). On the words of the Rules, the Regulator is right:

- Rule 64B lets a party require a non-party (here, the medical practice) to produce documents directly relevant to a matter in issue.
- Rule 64C requires the notice to be served on the non-party.
- Rule 64D(1)(a) requires a copy to be served on "a person, other than a party and the non-party, about whom information is sought by the notice". You are a party. The rule excludes you by its own terms.
- Rule 64E(2) allows a person who would be affected and was not served to object at any time with the tribunal's leave — which is the protection a party has, and which you in substance used when you asked the Commission to seal Exhibit A5.

Your own working file reached the same conclusion earlier this year (the red-team note records that the service point "fails on the rule's own words"), and the record confirms a Form 29 for the medical records was in fact signed by the Registry on 4 July 2025 (Form 24 response, paragraph 23). So the "unlawful seizure" and "breach of Rule 64C" characterisations should not be repeated anywhere.

The reprisal element is weak on its own terms. A reprisal under the Public Interest Disclosure Act requires detriment caused because of, or in the belief that, you made a public interest disclosure. The disclosure was made to Metro South Health in May 2024 and determined by its Ethical Standards Unit in December 2024. The appeals officer works for a different agency, obtained the records for a WorkCover appeal in which your psychiatric history is the central issue, and sent them to the solicitors who then acted for you. Obtaining a claimant's medical history in a psychiatric-injury appeal is ordinary litigation conduct, and sending documents to a person's own lawyers is service, not publication. The legitimate residual concern — that the file contained unrelated and sensitive entries — has been dealt with by the Commission agreeing to seal Exhibit A5. On that footing the Ethical Standards finding is defensible, and a further body (Ombudsman, Information Commissioner privacy complaint, or QCAT) is unlikely to reach a different view.

Two cautions.

1. Your WorkCover project file treats this complaint (Issue 4712 / ES 4822) as "parallel-track — quarantine": material that must not enter the appeal because it feeds the "vexatious litigant" framing. That rule is sound. The correspondence manifest shows the ES 4822 outcome letter was attached to a QIRC email on 27 February 2026 as "new evidence"; nothing further about this complaint should go to the Commission.
2. The complaint demanded the officer's removal within 24 hours and reserved rights to go to the CCC and the QHRC. Demands of that kind against an opposing representative, in a matter where the point turns out to be wrong on the rule, are exactly what the other side collects.

Recommendation. Let ES 4822 rest. Do not pursue the OIR complaints process, the Ombudsman or a privacy complaint on this point. If the Form 29 question is to be argued at all, it is a legal question on admitted facts inside the appeal, where the Commissioner has already protected the sensitive material.

6. Cross-cutting points

1. **The court is the forum that can compel the footage and test the statements.** ESC's answer, unsatisfying as it is, points there. The three serials, the two statements and the building manager's declaration are matters for Sibley Lawyers in the criminal proceeding. Keep every complaint letter consistent with the defence: state facts and dates, not characterisations, because anything you write to a complaint body about the events can be put to you.
2. **The Information Commissioner route is open and has not been used since November 2025.** The OIC asked you on 19 November 2025 whether QPS had issued a formal decision on RTI/56733 and whether you wanted external review. That question appears unanswered. This is the most direct remaining route to the footage outside the court, and it does not depend on ESC. If QPS issued a decision, an external review application is normally due within 20 business days of the decision notice "or within the longer period the information commissioner allows" (Right to Information Act s 88(1)(d)); if QPS never issued one, the application is treated as refused at the end of the processing period (s 46) and can be externally reviewed. The ground is a sufficiency-of-search ground: the agreed scope was the complete footage of two named officers on two dates, and segments within that scope were not produced.
3. **Volume is now working against you.** The CCC has asked you to stop writing. ESC asked a one-day question and then decided without contact. The 18 September 2025 RTI email threatened five bodies at once. Each of those is read as a pattern. From here: one body, one issue, one page, no copy list, no deadlines you cannot enforce.
4. **Confidentiality.** The CCC's emails carry a notice about the secrecy provisions of the Crime and Corruption Act (s 213). Sharing them with your lawyer is fine. Do not publish them or quote them to third parties.
5. **A record error to fix.** CHARGES_SUMMARY.md in the Personalproject repository lists "CO-25-2722" as a court matter and CO2500030466 as the drug-driving matter. CO-25-2722 is the CCC's complaint reference, and your 29 October letter and the D-schedule treat CO2500030466 as the proceeding arising from the February 2025 events. That should be reconciled in CORRECTION_REGISTER.md before anything is built from it.

7. Recommended sequence

When	Step	Why
Now	Tell Sibley Lawyers that ESC has closed COM-26-01249 and send them the Outcome Advice and your 29 October letter.	The statements and footage are live in the prosecution; your lawyers decide how and when to use the complaint material.
Now	Write to the Information Commissioner answering the 19 November 2025 questions and applying for external review of RTI/56733 (actual or deemed decision), asking for an extension of time if needed and identifying the three serials and the two dates. One page.	The only non-court route to the footage; the OIC can test the sufficiency of QPS's search.

When	Step	Why
Fri 13 Nov 2026, if no reply	A three-line email to ESC and the Deputy Commissioner's office: your letters of 29 Oct and 5 Nov are unanswered; please confirm the decision-maker and a date. Nothing new.	Keeps the record clean without adding material.
About 20 Nov 2026, if still no reply	One letter to the CCC: the matter it referred to the Deputy Commissioner for independence from ESC was finalised by ESC; the Deputy Commissioner's office has not said whether it decided anything; ask the CCC to consider its monitoring role on that point. One page; enclose only the Outcome Advice and your 29 Oct letter; no copies to others.	The one new fact the CCC has not seen, framed by its own 28 April direction to engage QPS first.
Do not	Pursue ES 4822 further; apply for judicial review of the ESC decision; write again to the CCC about the merits; copy multiple bodies.	Low prospects, high cost, and each adds to the pattern the other side relies on.
Keep	Preservation requests on the record; the family-law filing deadline on its own track.	—

8. Things only you can confirm

- Did you reply to ESC's particulars request by 19 June 2026? If so, keep the copy with the file.
- Did QPS ever send a decision notice for RTI/56733, and on what date?
- Did you accept the OIR complaints process offered on 23 February 2026?
- The contents of "COM-24-00832 CP SHEPHERD.pdf" (attached to your 29 October email) — I could not open it.
- Whether anything has arrived from ESC, the Deputy Commissioner's office or the CCC since 5 November 2026.

Appendix — provisions checked against the authorised current text

- Crime and Corruption Act 2001 (Qld): s 34 (devolution and public-interest principles), s 35(3) (focus on serious and systemic cases), s 42(2), (5), (7) and (8) (Commissioner of Police to deal with referred complaints subject to the CCC's monitoring role, and to respond to the complainant with reasons), s 213 (secrecy). Text current at 1 April 2026.
- Police Service Administration Act 1990 (Qld): s 7.2 (Part 7 applies to complaints received by the Commissioner or the CCC), s 7.4 (grounds for disciplinary action), s 7.12 (when a disciplinary proceeding must be started — one year from the ground arising, six months from receipt of the complaint, or six months after a proceeding against the officer ends). Text current at 29 October 2026.
- Industrial Relations (Tribunals) Rules 2011 (Qld): rr 64B, 64C, 64D(1)(a), 64E(1)–(2) and (4), 64G. Text current at 23 August 2024 (repository copy ATT27).
- Right to Information Act 2009 (Qld): s 46 (deemed decision), s 88(1)(d) (20 business days or longer period allowed). Current authorised text.
- Human Rights Act 2019 (Qld): ss 58, 59(3), 64, 65(1) (complaint to the entity first; 45 business days), 88. Text as at 20 September 2023 version read; confirm current.
- Ombudsman Act 2001 (Qld): s 7(2) (operational action of a police officer is not administrative action), s 16(2)(c)–(d) (no investigation of police action that may be or has been dealt with under the Crime and Corruption Act or Part 7 of the Police Service Administration Act), s 20(1)(c) (one-year limit). Text current at 29 October 2026.
- Not verified from source and flagged above: the Parliamentary Crime and Corruption Committee's complaint guide; the Judicial Review Act time limits; who may apply for QCAT review under the Crime and Corruption Act, ch 5 pt 3.

Cory Lea Shepherd — draft prepared 10 November 2026